

		Because the Court sustains the demurrers to Plaintiff's first through sixth causes of action, at this point, there is no underlying claim upon which the relief of constructive trust could be based. As such, the demurrer to the constructive trust claim is sustained with leave to amend, as its viability depends on the existence of an underlying claim. Plaintiff shall have 30 days from the notice of ruling to file and serve her amended complaint. The case management conference is continued to February 8, 2027 at 10:00 a.m. in Department C27. Defendants shall give notice of the ruling.
111	2025-01507066 Marquez vs. Hornet Acquisitionco, LLC	1. Motion to Be Relieved as Counsel of Record 2. Case Management Conference Joshua White's, Mae-Elaine Delos Santos' and Laurel Employment Law, APC's motion to withdraw as counsel for Plaintiff Scott Marquez is granted. Upon the signing of the order, counsel shall serve said order on all parties. Counsel is ordered to again use their best efforts to serve the order on Plaintiff Scott Marquez, including mailing it to Plaintiff's last known address and electronically serving Plaintiff if his email address is known. Joshua White, Mae-Elaine Delos Santos and Laurel Employment Law, APC will be relieved as counsel of record for Plaintiff effective upon the filing of the proof of service of the signed order upon the client and Defendant. The case management conference is continued to February 8, 2027 at 10:00 a.m. in Department C27. Moving party is ordered to submit an updated order with the continued CMC date. Laurel Employment Law, APC shall give notice of the ruling.
112	2025-01467788 Alazzawi vs. Fletchall Silva	1. Motion for Determination of Good Faith Settlement 2. Case Management Conference Defendant/Cross-Defendant Jason Michael Fletchall-Silva moves for an order determining that the settlement he reached with Plaintiff was made good faith pursuant to Code Civ. Proc., § 877.6. "A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault." (See Code Civ. Proc., §877.6(c)). In order to determine a settlement was made in "good faith," a Court takes into consideration the facts and circumstances of the particular case. (See <i>Tech-Bilt, Inc. v. Woodward-Clyde & Associates</i> (1985) 38 Cal.3d 488, 499). There does not appear to be any evidence of any collusion, fraud or tortuous conduct